

14.	30-2023-01351883 Mayorga vs. The Grand Theatre, Inc	1. Motion to Deem Facts Admitted Plaintiff Yanel Mayorga (“Plaintiff”) moves to deem Requests for Admission, Set One admitted against Defendant Musa Madain on the grounds that he failed to serve any responses. Plaintiff also seeks \$1,860 in monetary sanctions. Defendant The Grand Theater, Inc. and Musa Madain (“Defendants”) oppose the motion, arguing that verified responses without objections were provided on 06/01/2026 (which is the same day that this motion was filed). Code of Civil Procedure section 2033.280 provides that if a party to whom requests for admission are directed fails to serve a timely response, the party waives any objection to the requests. (Code Civ. Proc., § 2033.280.) The requesting party may also move for an order that the genuineness of documents and the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280. subds. (a)-(b).) The court shall deem the matters admitted unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. (Code Civ. Proc., § 2033.280, subd. (c).) Monetary sanctions are mandatory against the party or attorney who necessitated the motion unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (<i>Ibid.</i>) Here, the motion to deem matters admitted is DENIED AS MOOT because Defendant provided verified responses without objections on 06/01/2026. Still, Defendant’s failure to timely respond to the requests for admissions necessitated the motion and therefore the Court GRANTS monetary sanctions in the reduced amount of \$660 to be paid within 30 days of this order. Defendants to give notice.
15.	30-2026-01544617 DeBouck vs. Bays Apartment Newport, LLC	1. Case Management Conference 2. Motion to Compel Arbitration Defendants, Bays Apartment Newport LLC and Irvine Management Company (collectively, “Defendants”) move for an order compelling this matter to binding arbitration and staying this action until the completion of arbitration. Defendants contend that a valid agreement to arbitrate exists between Defendants and Plaintiff Heather DeBouck, who executed the lease agreement and arbitration addendum; that Plaintiff Melanie DeBouck is a third-party beneficiary of the lease agreement and is equitably estopped from refusing arbitration; that the arbitration agreement is subject to the Federal Arbitration Act (“FAA”) which preempts state law, including Civil Code section 1953; and that there is a delegation clause which leaves the question of scope and applicability of the arbitration agreement to the arbitrator. Plaintiffs Heather DeBouck and Melanie DeBouck (“Plaintiffs”) do not dispute that they executed residential lease agreements with Defendants, but argue that even assuming the FAA governs, the